

raise capital or borrow money from time to time for electricity purposes authorised by any Act of Parliament or any Order having the force of an Act of Parliament:

Provided that the principal moneys secured by any mortgage debenture or debenture stock authorised by any such special Order shall rank after any mortgage debenture or debenture stock of any such company existing at the time such Order was made.

Definition. 3. The expression "statutory gas companies" means any company or person authorised to sell gas by any Act of Parliament or any Order having the force of an Act of Parliament.

Short title. 4. This Act may be cited as the Statutory Gas Companies (*Electricity Supply Powers*) Act, 1925.

CHAPTER 45.

An Act to amend the Law with respect to the Guardianship, Custody and Marriage of Infants.
[31st July 1925.]

9 & 10
Geo. 5. c. 71. **W**HEREAS Parliament by the Sex Disqualification (Removal) Act, 1919, and various other enactments, has sought to establish equality in law between the sexes, and it is expedient that this principle should obtain with respect to the guardianship of infants and the rights and responsibilities conferred thereby:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Principle on which questions relating to custody, upbringing, &c. of infants are to be decided.

1. Where in any proceeding before any court (whether or not a court within the meaning of the Guardianship of Infants Act, 1886) the custody or upbringing of an infant, or the administration of any property belonging to or held on trust for an infant, or the application of the income thereof, is in question, the court, in deciding that question, shall regard the welfare of the infant as the first and paramount consideration,

and shall not take into consideration whether from any other point of view the claim of the father, or any right at common law possessed by the father, in respect of such custody, upbringing, administration or application is superior to that of the mother, or the claim of the mother is superior to that of the father.

49 & 50 Vict.
c. 27.

2. The mother of an infant shall have the like powers to apply to the court in respect of any matter affecting the infant as are possessed by the father.

Equal right
of mother to
apply to
court.

3.—(1) The power of the court under section five of the Guardianship of Infants Act, 1886, to make an order as to the custody of an infant and the right of access thereto may be exercised notwithstanding that the mother of the infant is then residing with the father of the infant.

Amendment
of 49 & 50
Vict. c. 27.
s. 5 with
respect to
the custody
and maintenance
of
infants.

(2) Where the court under the said section as so amended makes an order giving the custody of the infant to the mother, then, whether or not the mother is then residing with the father, the court may further order that the father shall pay to the mother towards the maintenance of the infant such weekly or other periodical sum as the court, having regard to the means of the father, may think reasonable.

(3) No such order, whether for custody or maintenance, shall be enforceable and no liability thereunder shall accrue while the mother resides with the father, and any such order shall cease to have effect if for a period of three months after it is made the mother of the infant continues to reside with the father.

(4) Any order so made may, on the application either of the father or the mother of the infant, be varied or discharged by a subsequent order.

4.—(1) On the death of the father of an infant, the mother, if surviving, shall, subject to the provisions of this Act, be guardian of the infant, either alone or jointly with any guardian appointed by the father. When no guardian has been appointed by the father or if the guardian or guardians appointed by the father is or are dead or refuses or refuse to act, the court may if it thinks fit appoint a guardian to act jointly with the mother.

Rights of
surviving
parent as to
guardian-
ship.

(2) On the death of the mother of an infant, the father, if surviving, shall, subject to the provisions of this Act, be guardian of the infant, either alone or jointly with any guardian appointed by the mother. When no guardian has been appointed by the mother or if the guardian or guardians appointed by the mother is or are dead or refuses or refuse to act, the court may if it thinks fit appoint a guardian to act jointly with the father.

(3) Section two of the Guardianship of Infants Act, 1886, is hereby repealed.

Power of
father and
mother to
appoint
testamen-
tary
guardians.

5.—(1) The father of an infant may by deed or will appoint any person to be guardian of the infant after his death.

(2) The mother of an infant may by deed or will appoint any person to be guardian of the infant after her death.

(3) Any guardian so appointed shall act jointly with the mother or father, as the case may be, of the infant so long as the mother or father remains alive unless the mother or father objects to his so acting.

(4) If the mother or father so objects, or if the guardian so appointed as aforesaid considers that the mother or father is unfit to have the custody of the infant, the guardian may apply to the court, and the court may either refuse to make any order (in which case the mother or father shall remain sole guardian) or make an order that the guardian so appointed shall act jointly with the mother or father, or that he shall be sole guardian of the infant, and in the latter case may make such order regarding the custody of the infant and the right of access thereto of its mother or father as, having regard to the welfare of the infant, the court may think fit, and may further order that the mother or father shall pay to the guardian towards the maintenance of the infant such weekly or other periodical sum as, having regard to the means of the mother or father, the court may consider reasonable.

(5) Where guardians are appointed by both parents, the guardians so appointed shall after the death of the surviving parent act jointly.

(6) If under the preceding section a guardian has been appointed by the court to act jointly with a

surviving parent, he shall continue to act as guardian after the death of the surviving parent; but if the surviving parent has appointed a guardian, the guardian appointed by the court shall act jointly with the guardian appointed by the surviving parent.

(7) Section three of the Guardianship of Infants Act, 1886, is hereby repealed.

6. Where two or more persons act as joint guardians of an infant and they are unable to agree on any question affecting the welfare of the infant, any of them may apply to the court for its direction, and the court may make such order regarding the matters in difference as it may think proper.

Disputes
between
joint
guardians.

7.—(1) For the purposes of the Guardianship of Infants Act, 1886, as amended by this Act, the expression “the court” shall include a court of summary jurisdiction:

Extension
of jurisdic-
tion to
courts of
summary
jurisdiction.

Provided that a court of summary jurisdiction shall not be competent—

- (a) to entertain any application other than an application for variation or discharge of an existing order under the Guardianship of Infants Act, 1886, as so amended, relating to an infant who has attained the age of sixteen years, unless the infant is physically or mentally incapable of self support; or
- (b) to entertain any application involving the administration or application of any property belonging to or held in trust for an infant, or the income thereof; or
- (c) to award the payment of sums towards the maintenance of any infant exceeding twenty shillings a week.

(2) The Lord Chancellor may make rules regulating the procedure in courts of summary jurisdiction under this section, and may by those rules make provision for enabling of applications to be heard and determined otherwise than in open court.

(3) Where on an application to a court of summary jurisdiction under the Guardianship of Infants Act, 1886, as amended by this Act, the court makes or refuses to make an order, an appeal shall, in accordance with rules of court, lie to the High Court:

Provided that, where any such application is made to a court of summary jurisdiction, and the court considers that the matter is one which would more conveniently be dealt with by the High Court, the court of summary jurisdiction may refuse to make an order, and in such case no appeal shall lie to the High Court.

(4) An order of a court of summary jurisdiction for the payment of money under the Guardianship of Infants Act, 1886, as amended by this Act, shall be enforceable in like manner as an order for the payment of a civil debt recoverable summarily.

(5) Where an order made by a court of summary jurisdiction under the Guardianship of Infants Act, 1886, as amended by this Act, contains a provision committing to the applicant the legal custody of any infant a copy of the order may be served on any person in whose actual custody the infant may for the time being be, and thereupon the provision may, without prejudice to any other remedy open to the applicant, be enforced under subsection (2) of section thirty-four of the Summary Jurisdiction Act, 1879, as if it were an order of the court requiring that person to give up the infant to the applicant.

(6) This section shall not extend to Scotland.

42 & 43 Vict
c. 49.

Enforce-
ment of
orders for
payment of
money.

8.—(1) Any person for the time being under an obligation to make payments in pursuance of any order for the payment of money under the Guardianship of Infants Act, 1886, as amended by this Act, shall give notice of any change of address to such person (if any) as may be specified in the order, and any person failing without reasonable excuse to give such a notice shall be liable on summary conviction to a fine not exceeding two pounds.

(2) Where the court has made any such order, the court shall, in addition to any other powers for enforcing compliance with the order, have power, in any case where there is any pension or income payable to the person against whom the order is made and capable of being attached, after giving the person by whom the pension or income is payable an opportunity of being heard, to order that such part as the court may think fit of any such pension or income, be attached and paid to the person named by the court, and such further order

shall be an authority to the person by whom such pension or income is payable to make the payment so ordered, and the receipt of the person to whom the payment is ordered to be made shall be a good discharge to the person by whom the pension or income is payable.

(3) In the application of this section to Scotland, the expression "arrested" shall be substituted for the expression "attached."

9.—(1) The consent required to the marriage of an infant, in the case of a marriage intended to be solemnized or contracted on the issue of any certificate by a superintendent registrar whether by licence or without licence, shall be that of the persons or person mentioned in the Schedule to this Act:

Consents
required to
marriage of
infants.

Provided that—

- (a) if the superintendent registrar is satisfied that the consent of any person whose consent is so required cannot be obtained by reason of absence or inaccessibility or by reason of his being under any disability, the necessity for the consent of that person shall be dispensed with, if there is any other person whose consent is also required; and if the consent of no other person is required, the Registrar General may dispense with the necessity of obtaining any consent, or the court may, on application being made, consent to the marriage, and the consent of the court so given shall have the same effect as if it had been given by the person whose consent cannot be so obtained;
- (b) if any person whose consent is required refuses his consent, the court may, on application being made, consent to the marriage, and the consent of the court so given shall have the same effect as if it had been given by the person whose consent is so refused.

(2) The foregoing subsection shall apply to marriages intended to be solemnized on the issue of a licence by an ecclesiastical authority having power to issue such a licence, with the substitution of references to that authority for references to the superintendent

registrar, and with the substitution of a reference to the Master of the Faculties for the reference to the Registrar-General.

4 Geo. 4.
c. 76.

(3) The persons whose consent is required to such marriage as aforesaid shall, in the case of a marriage intended to be solemnized after the declaration of banns, be the persons entitled to give notice of dissent under section eight of the Marriage Act, 1823.

(4) For the purposes of this section, "the court" has the same meaning as in the Guardianship of Infants Act, 1886, as amended by this Act, and rules of court may be made for enabling applications under this section—

(a) if made to the High Court to be heard in chambers;

(b) if made to the county court to be heard and determined by the Registrar subject to appeal to the judge;

(c) if made to a court of summary jurisdiction to be heard and determined otherwise than in open court;

and shall provide that, where an application is made in consequence of a refusal to give consent, notice of the application shall be served on the person who has so refused consent.

(5) Sections sixteen and seventeen of the Marriage Act, 1823, are hereby repealed.

(6) Nothing in this section shall dispense with the necessity of obtaining the consent of the High Court to the marriage of a ward of court.

(7) This section shall not extend to Scotland.

Tutors.

10. In Scotland a father or mother acting as tutor of a pupil child by virtue of the common law or of the Guardianship of Infants Act, 1886, or of this Act, shall be deemed to be and always to have been a trustee within the meaning of the Trusts (Scotland) Act, 1921.

11 & 12
Geo. 5. c. 58.

Short title,
construc-
tion, com-
mencement,
and extent.

11.—(1) This Act may be cited as the Guardianship of Infants Act, 1925.

(2) This Act shall (except so far as it amends the law relating to the marriage of infants) be construed as one with the Guardianship of Infants Act, 1886, and

that Act and this Act may be cited together as the Guardianship of Infants Acts, 1886 and 1925.

(3) This Act shall come into operation on the expiration of two months after the passing thereof.

(4) This Act shall not extend to Northern Ireland.

SCHEDULE.

Section 9.

CONSENTS REQUIRED TO THE MARRIAGE OF AN INFANT.

I. WHERE THE INFANT IS LEGITIMATE.

Circumstances.	Person or Persons whose consent is required.
1. Where both parents are living :	
(a) if parents living together ;	Both parents.
(b) if parents are divorced or separated by order of court or by agreement ;	The parent to whom the custody of the infant is committed by order of any court or by the agreement, or, if the custody of the infant is so committed to one parent during part of the year and to the other parent during the rest of the year, both parents ;
(c) if one parent has been deserted by the other ;	The parent who has been deserted.
(d) if both parents deprived of custody of infant by order of court.	The person to whose custody the infant is committed by order of the court.
2. Where one parent is dead :	
(a) if there is no other guardian ;	The surviving parent.
(b) if a guardian has been appointed by the deceased parent.	The surviving parent and the guardian if acting jointly, or the surviving parent or the guardian if the parent or guardian is the sole guardian of the infant.
3. Where both parents are dead -	The guardians or guardian appointed by the deceased parents or by the court under section four of this Act.

II. WHERE THE INFANT IS ILLEGITIMATE.

Circumstances.	Person whose consent is required.
If the mother of the infant is alive -	The mother, or if she has by order of the court been deprived of the custody of the infant, the person to whom the custody of the infant has been committed by order of the court.
If the mother of the infant is dead.	The guardian appointed by the mother.

CHAPTER 46.

An Act to prevent unauthorised reproductions of dramatic and musical performances.

[31st July 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Penalties
for making,
&c. records
without
consent of
performers.

1. If any person knowingly—

- (a) makes any record, directly or indirectly, from or by means of the performance of any dramatic or musical work without the consent in writing of the performers; or
- (b) sells or lets for hire, or distributes for the purposes of trade, or by way of trade exposes or offers for sale or hire, any record made in contravention of this Act; or
- (c) uses for the purpose of a public performance any record made in contravention of this Act,

he shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a fine not exceeding forty shillings for each record in respect of which an offence is proved, but not exceeding fifty pounds in